

Environmental Public Health (General Cleaning Industry) Regulations 2014

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No. S 240

ENVIRONMENTAL PUBLIC HEALTH ACT (CHAPTER 95)

ENVIRONMENTAL PUBLIC HEALTH (GENERAL CLEANING INDUSTRY) REGULATIONS 2014

In exercise of the powers conferred by section 111 of the Environmental Public Health Act, the National Environment Agency, with the approval of the Minister for the Environment and Water Resources, hereby makes the following Regulations:

Citation and commencement

1. These Regulations may be cited as the Environmental Public Health (General Cleaning Industry) Regulations 2014 and shall come into operation on 1st April 2014.

Definitions

2. In these Regulations, unless the context otherwise requires —

“bizSAFE certification” means a certification issued by the Workplace Safety and Health Council under a programme known as the bizSAFE programme and implemented by the Workplace Safety and

“class 1 cleaning business licence” means the class 1 cleaning business licence mentioned in regulation 4(1)(a);

[S 940/2023 wef 01/01/2024]

“class 2 cleaning business licence” means the class 2 cleaning business licence mentioned in regulation 4(1)(b);

[S 940/2023 wef 01/01/2024]

“class 3 cleaning business licence” means the class 3 cleaning business licence mentioned in regulation 4(1)(c);

[S 940/2023 wef 01/01/2024]

“Employment Claims Tribunal” means a subordinate court called an Employment Claims Tribunal constituted under section 4 of the State Courts Act 1970;

[S 940/2023 wef 01/01/2024]

“identification number” means —

- (a) in the case of an individual who is a citizen or permanent resident of Singapore and who has been issued with an identity card under the National Registration Act 1965, his or her Singapore identity card number (including the letters that form the prefix and suffix to the identity card number); or
- (b) in the case of any other individual, the country that issued his or her passport followed by his or her passport number and (if applicable) work permit number;

[S 459/2023 wef 01/07/2023]

“licensee” means the holder of a cleaning business licence;

“resident cleaner” means a cleaner who is a citizen or permanent resident of Singapore;

[S 459/2023 wef 01/07/2023]

“salary period” has the same meaning as in section 20 of the Employment Act 1968;

[S 459/2023 wef 31/12/2021]

[S 459/2023 wef 01/07/2023]

“section 80H(2) Order” means an order made by the Commissioner for Labour under section 80H(2) of the Act in respect of cleaners;

[S 459/2023 wef 01/07/2023]

[S 940/2023 wef 01/01/2024]

“Workplace Safety and Health Council” means the Workplace Safety and Health Council established under section 39 of the Workplace Safety and Health Act 2006.

[S 940/2023 wef 01/01/2024]

Components of “progressive wage model bonus”

2A. For the purposes of paragraph (b) of the definition of “progressive wage model bonus” (as defined in section 2 of the Act), a progressive wage model bonus in relation to a cleaner includes any additional payment by a licensee to the cleaner by way of bonus payments or annual wage supplements.

[S 459/2023 wef 01/07/2023]

Fees

3.—(1) The fees specified in the second column of the First Schedule shall be payable to the Agency in respect of the matters specified opposite in the first column.

[S 1023/2022 wef 31/12/2022]

(2) *[Deleted by S 139/2026 wef 01/04/2026]*

(3) The Director-General may, in any particular case or class of cases, waive or reduce the whole or any part of any fee payable under paragraph (1).

[S 940/2023 wef 01/01/2024]

Prescribed requirements for application for cleaning business licence

4.—(1) On or after 1 January 2024, the classes of cleaning business licences mentioned in section 80G(4A) of the Act that may be granted or renewed under the Act are as follows:

- (a) class 1 cleaning business licence;
- (b) class 2 cleaning business licence;
- (c) class 3 cleaning business licence.

(2) For the purposes of section 80G(4)(g) of the Act —

- (a) the prescribed requirements for an application for the grant or renewal of a class 1 cleaning business licence are specified in Part 2 of the Second Schedule;
- (b) the prescribed requirements for an application for the grant or renewal of a class 2 cleaning business licence are specified in Part 3 of the Second Schedule; and
- (c) the prescribed requirements for an application for the grant of a class 3 cleaning business licence are specified in Part 4 of the Second Schedule.

[S 940/2023 wef 01/01/2024]

Requirements of progressive wage plan

5. For the purposes of section 80G(4)(c) of the Act, the progressive wage plan of an applicant for the grant or renewal of a cleaning business licence must —

- (a) relate to every citizen or permanent resident of Singapore the licensee or applicant employs or proposes to employ as a cleaner in its cleaning business;
- (b) specify the basic wage payable to every cleaner in paragraph (a) that is on an increasing scale depending on seniority, responsibilities, cleaning work experience and training received;
- (c) specify an amount as the basic wage for each class of cleaners in paragraph (a) that is not less than the amount specified under section 80H(2)(a) of the Act for that class; and
- (d) specify that where the cleaner belongs to a class of cleaners specified as eligible for a progressive wage model bonus under section 80H(2)(b) of the Act, the cleaner will be paid a progressive wage model bonus.

[S 459/2023 wef 01/07/2023]

Conditions of cleaning business licence

6.—(1) For the purposes of section 80H(1) of the Act, the following conditions are imposed on every licensee:

(a) *[Deleted by S 940/2023 wef 01/01/2024]*

(b) the licensee must enter into a contract of service in writing with each cleaner employed by the licensee;

(c) every contract of service entered into between the licensee and every resident cleaner must provide for the payment of a basic wage and a progressive wage model bonus to the resident cleaner, that —

(i) is not less than the minimum amount of basic wage and minimum amount of progressive wage model bonus, respectively; and

(ii) in the case of a progressive wage model bonus, is at the frequency, specified by the section 80H(2) Order for the class of cleaners to which the resident cleaner belongs;

(d) the licensee must ensure that every cleaner employed by the licensee satisfies the training requirements as may be specified by the Director-General for the class of cleaners to which the cleaner belongs;

(e) the licensee must not deploy any individual who is not employed by the licensee to carry out any cleaning work, unless the individual is a cleaner employed by another licensee;

(f) the licensee must keep the records, accounts or documents specified in paragraph (2) for the period of retention specified in paragraph (3).

(2) For the purposes of paragraph (1)(f), the records, accounts or documents are —

(a) a copy of every cleaning contract entered into by the licensee —

(i) in respect of which performance under that cleaning contract has not started or has started but not completed as at the date of the licensee's application for a cleaning business licence; or

(ii) in respect of which performance under that cleaning contract has been completed during the 12 months immediately preceding the date of the licensee's application for a cleaning business licence;

(b) the accounts of the licensee's cleaning business;

(c) a copy of the contract of service between the licensee and every cleaner —

(i) who is in the licensee's employ as at the date of the licensee's application for the grant or renewal of the licensee's cleaning business licence; or

(ii) who is employed by the licensee after that date, including any amendment, variation or addition to the contract of service;

[S 940/2023 wef 01/01/2024]

(d) training records in respect of each cleaner the licensee employs containing all of the following particulars in respect of each cleaner:

(i) the cleaner's full name;

(ii) the cleaner's date of birth;

- (iii) the cleaner's identification number;
- (iv) the courses and training modules (including the name and course code thereof) that the cleaner has attended, whether before or during the cleaner's employment with the licensee;
- (v) the name of the training provider of each course and training module mentioned in subparagraph (iv);
- (vi) the date and results of any assessment that the cleaner has taken, whether before or during the cleaner's employment with the licensee; and

[S 940/2023 wef 01/01/2024]

- (e) where the licensee is a holder of a class 1 cleaning business licence or class 2 cleaning business licence, a copy of every bizSAFE certification that the licensee holds on or after 1 January 2024.

[S 940/2023 wef 01/01/2024]

(3) The period of retention mentioned in paragraph (1)(f) is —

- (a) in the case of the records specified in paragraph (2)(a) — 4 years after the expiry of the cleaning contract concerned;
- (b) in the case of the accounts specified in paragraph (2)(b) — 4 years after the end of the period to which the accounts relate;
- (c) in the case of the records specified in paragraph (2)(c) — 4 years after the end of the employment of the cleaner to whom those records relate;
- (d) in the case of the training records specified in paragraph (2)(d) — for as long as the cleaner concerned is employed by the licensee; and

[S 940/2023 wef 01/01/2024]

[S 459/2023 wef 01/07/2023]

[S 940/2023 wef 01/01/2024]

- (e) in the case of a bizSAFE certification specified in paragraph (2)(e) — 4 years after the date on which the bizSAFE certification expires.

[S 940/2023 wef 01/01/2024]

(4) In addition to paragraph (1), where the licensee holds a class 1 cleaning business licence —

- (a) during the validity of its cleaning business licence, the licensee must not have —
 - (i) been convicted of any offence under the Act, the Central Provident Fund Act 1953, the Employment Act 1968, the Employment of Foreign Manpower Act 1990 or the Workplace Safety and Health Act 2006; or
 - (ii) failed to comply with any order made by an Employment Claims Tribunal under section 22 of the Employment Claims Act 2016; and
- (b) the licensee must ensure that at all times during the validity period of the cleaning business licence, the licensee holds a valid bizSAFE Certificate of level 3 or a higher level.

[S 940/2023 wef 01/01/2024]

(5) In addition to paragraph (1), where the licensee holds a class 2 cleaning business licence —

- (a) where the licensee was required to satisfy the requirement in paragraph 3(b) or 4(b)(ii) of Part 3 of the Second Schedule in respect of the grant or renewal of the class 2 cleaning business licence — the licensee must ensure that at all times during the validity period of the cleaning business licence, at least one of the licensee’s officers or employees has the practical experience or qualification mentioned in that paragraph; and
- (b) the licensee must ensure that at all times during the validity period of the cleaning business licence, the licensee holds a valid bizSAFE Certificate of level 3 or a higher level.

[S 940/2023 wef 01/01/2024]

(6) In addition to paragraph (1), where the licensee holds a class 3 cleaning business licence and was required to satisfy the requirement in paragraph 2(b) or 3(b)(ii) of Part 4 of the Second Schedule in respect of the grant of a class 3 cleaning business licence, the licensee must ensure that at all times during the validity period of the cleaning business licence, at least one of the licensee’s officers or employees has the practical experience or qualification mentioned in that paragraph.

[S 940/2023 wef 01/01/2024]

Renewal of cleaning business licence

7. For the purposes of section 80I(1A) of the Act, a class 3 cleaning business licence cannot be renewed upon its expiry.

[S 940/2023 wef 01/01/2024]

Pending application for cleaning business licence before 1 January 2024

8. For the purposes of section 30(2) of the Environmental Public Health (Amendment) Act 2023, an application for a cleaning business licence that —

- (a) is made under section 80F of the Act as in force immediately before 1 January 2024; and
- (b) is pending on that date,

is treated as an application for a class 3 cleaning business licence.

[S 940/2023 wef 01/01/2024]

9. *[Deleted by S 459/2023 wef 01/07/2023]*

Made this 31st day of March 2014.

CHEW GEK KHIM
*Chairman,
National Environment Agency,
Singapore.*

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(To be presented to Parliament under section 111(4) of the Environmental Public Health Act).

